

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carter Garfield	Team: Squad #16	CCRB Case #: 202300835	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/21/2022 4:36 PM	Location of Incident: Front of 161 Mulberry Street	18 Mo. SOL 3/21/2024	Precinct: 05		
Date/Time CV Reported Mon, 01/30/2023 6:43 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 01/30/2023 6:43 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Lamont Kirkland	15454	937911	005 PCT
2. PO Kennedy Gomez	24563	969748	005 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Dennis Kang	29955	967134	005 PCT
2. LT Michael Ki	00000	917820	005 PCT
3. SGT Richard Urbina	03262	918429	005 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Lamont Kirkland	Abuse: Police Officer Lamont Kirkland stopped § 87(2)(b)	A . Substantiated
B . PO Lamont Kirkland	Abuse: Police Officer Lamont Kirkland detained § 87(2)(b)	B . Substantiated
C . PO Lamont Kirkland	Abuse: Police Officer Lamont Kirkland detained § 87(2)(b)	C . Substantiated
D . PO Lamont Kirkland	Abuse: Police Officer Lamont Kirkland detained § 87(2)(b)	D . Substantiated
E . PO Lamont Kirkland	Abuse: Police Officer Lamont Kirkland detained § 87(2)(b)	E . Substantiated
F . PO Lamont Kirkland	Abuse: Police Officer Lamont Kirkland failed to provide § 87(2)(b) with a business card.	F . Substantiated
G . PO Lamont Kirkland	Abuse: Police Officer Lamont Kirkland failed to provide § 87(2)(b) with a business card.	G . Substantiated
H . PO Lamont Kirkland	Abuse: Police Officer Lamont Kirkland failed to provide § 87(2)(b) with a business card.	H . Substantiated
I . PO Lamont Kirkland	Abuse: Police Officer Lamont Kirkland failed to provide § 87(2)(b) with a business card.	I . Substantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On January 30, 2023, § 87(2)(b) filed the following complaint on the CCRB website on behalf of themselves and their friends, § 87(2)(b) and § 87(2)(b).

On September 21, 2022, at approximately 4:36 p.m., § 87(2)(b) and § 87(2)(b) were attending an event outside of 161 Mulberry Street in Manhattan when PO Lamont Kirkland and PO Kennedy Gomez, both of the 5th Precinct, approached them. PO Kirkland stopped § 87(2)(b) due to exposing her breasts in public (**Allegation A: Abuse of Authority, substantiated**).

§ 87(2)(b) asked to speak to a supervisor, and PO Kirkland detained § 87(2)(b) and § 87(2)(b) until one arrived (**Allegations B – E: Abuse of Authority, substantiated**).

PO Dennis Kang, Sgt. Richard Urbina, and Lieutenant Michael Ki, all of the 5th Precinct, responded to the scene. Lieutenant Ki informed § 87(2)(b) that they were no longer detained and § 87(2)(b) and § 87(2)(b) all left the scene. PO Kirkland failed to provide a business card to all four individuals (**Allegations F – I: Abuse of Authority, substantiated**).

§ 87(2)(g), § 87(4-b)

No summons or arrest resulted from this incident. The investigation is in possession of five BWC videos pertaining to this incident (**BRs 01, 16, 17**) and a video filmed by § 87(2)(b) (**BR 02**) that captures the incident. The investigation is in possession of no additional video.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Lamont Kirkland stopped § 87(2)(b)

It is undisputed that § 87(2)(b) exposed her breast on the day of this incident and that PO Kirkland stopped § 87(2)(b) in regard.

§ 87(2)(b) (**BR 03**) stated that they were at the 2022 San Gennaro Feast in Little Italy (specifically on the intersection of Mott and Grand Street) with § 87(2)(b) and § 87(2)(b) when § 87(2)(b) had a “wardrobe malfunction” in which a strap on her dress broke, resulting in her accidentally exposing her breasts. Shortly afterward, a man they believed to be a security guard for the event told § 87(2)(b) that she must leave. After explaining that the exposure was accidental, the security guard threatened to hit them if they did not leave, and so they walked away from the guard in response. § 87(2)(b) saw the guard approach two officers (identified by the investigation as PO Kirkland and PO Gomez) who, after they spoke, approached § 87(2)(b) and his friends. § 87(2)(b) stated that he continued walking away from the officers, but after about two blocks he turned around and saw that PO Kirkland and PO Gomez were speaking with § 87(2)(b) and § 87(2)(b) so he walked back to them and began filming the incident on his camera. § 87(2)(b) did not know what the officers’ initial conversation was with § 87(2)(b) but when they approached they heard them arguing over the legality of women being topless in New York City.

The investigation was able to make a determination without statements from § 87(2)(b) and § 87(2)(b).

PO Kirkland (**BR 04**) provided a statement generally consistent with § 87(2)(b) in that he was informed by an event organizer at the San Gennaro Feast that § 87(2)(b) was exposing her breasts at the event and he wanted her to be removed from the event. PO Kirkland also testified that he had observed § 87(2)(b) exposing her breasts at the event prior to the event organizer approaching him. After speaking with the event organizer, PO Kirkland then approached § 87(2)(b).

and informed her that the event organizers wanted her to leave because she had exposed her breasts, to which they began arguing over the legality of toplessness in New York City.

PO Gomez (BR 05) testified that he had been working at the San Gennaro Feast all day and that this was the third interaction he had had that day with § 87(2)(b). The first was around 11:20 a.m., when a civilian informed PO Gomez that § 87(2)(b) was exposing her breasts repeatedly at the event and pretending it was an accident. PO Gomez walked over to § 87(2)(b) who was with § 87(2)(b) and § 87(2)(b) and said to § 87(2)(b) “Do you mind not flashing the kids.” The group explained that they were filming a “comedy sketch” but agreed to stop and leave the event. About an hour later, a man who appeared to be a food vendor approached PO Gomez and complained that § 87(2)(b) was exposing her breasts at the event, to which PO Gomez approached the group a second time. PO Gomez spoke with § 87(2)(b) again, who (along with § 87(2)(b) and § 87(2)(b)) appeared to then leave the festival.

PO Gomez testified that he was next to PO Kirkland when the man who appeared to be an event organizer approached them about § 87(2)(b) exposing her breasts. PO Gomez testified that the man did not request the officers to take any specific action concerning § 87(2)(b) or her group. Before PO Kirkland approached § 87(2)(b), PO Gomez informed him about the previous two complaints he had received regarding § 87(2)(b). PO Kirkland did not inform PO Gomez what he planned to do prior to stopping § 87(2)(b).

PO Kirkland’s BWC (BR 16) begins with him in the middle of speaking with a man wearing a tee shirt that says, “Feast of San Gennaro STAFF” printed on the front. There is no audio until 1:00 so their conversation is not audibly captured. PO Kirkland begins walking up Mulberry Street and towards § 87(2)(b) who is wearing a black dress and walking away from him. She is not seen exposing herself on video. At 00:30, § 87(2)(b) is first seen on video; he is wearing a toque and an apron and is walking next to § 87(2)(b). At 00:42, § 87(2)(b) and § 87(2)(b) turn around and look behind them, then stop walking. At 00:50, PO Kirkland is standing in front of them, and § 87(2)(b) is holding the left strap of her dress up with one hand. At 00:53, § 87(2)(b) and § 87(2)(b) walk up behind § 87(2)(b) from the other direction. § 87(2)(b) is filming on his camera. At 1:00, the audio begins. PO Kirkland is saying, “Show me the law,” while § 87(2)(b) is saying, “I know my rights.” They begin arguing over the legality of female toplessness in New York City.

NYS Penal Law §245.01 (BR 18) finds a person guilty of exposure, which is a violation, when the appear in public with private or intimate parts exposed. The law defines private or intimate parts of a female person to include the portion of the breast which is below the top of the areola (or nipple).

In People v. Santorelli, 80 N.Y.2d 875 (1992) (BR 06), the court ruled that Penal Law §245.01 violated the appellant’s equal protection rights and that the Equal Protection Clause prohibits women from being held criminally liable for an act for which men are not similarly held accountable.

Patrol Guide Procedure 212-11 (BR 07) states that if an officer has reasonable suspicion that an individual has committed a crime, they may stop and detain the person for the purpose of conducting a criminal investigation.

Because PO Kirkland was the officer who spoke with § 87(2)(b) (and later detained the entire group, to be discussed below), **Allegation A** is pleaded against him.

It is undisputed that PO Kirkland approached and stopped § 87(2)(b) on the belief that § 87(2)(b) had committed a violation, the violation being indecent exposure; § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation (B) Abuse of Authority: Police Officer Lamont Kirkland detained § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Lamont Kirkland detained § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Lamont Kirkland detained § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Lamont Kirkland detained § 87(2)(b)

It is undisputed that § 87(2)(b) requested to speak with a supervisor during this incident and that PO Kirkland detained all four individuals until a supervisor arrived on scene.

The investigation was able to make a determination without statements from § 87(2)(b) and § 87(2)(b).

In PO Kirkland's BWC (BR 16) at 3:26, § 87(2)(b) and § 87(2)(b) are speaking with PO Gomez while § 87(2)(b) is speaking to PO Kirkland. § 87(2)(b) asks to speak with a supervisor and PO Kirkland says, "My supervisor comes he tell me kick you out and gives you a summons, you wanna do that?" and § 87(2)(b) responds, "I want to know what my rights are." At 3:33, PO Kirkland repeats that § 87(2)(b) and their friends cannot be in the feast topless and says at 3:48, "Cause she's flashing people more than once, in fact let me call my supervisor and he gon' end this alright." At 3:45, § 87(2)(b) says, "We don't want to get in trouble, we'll leave" and PO Kirkland replies, "No, no, no, imma call my supervisor." § 87(2)(b) says, "We'll leave, we're leaving" while PO Kirkland radios for a supervisor to the scene. At 3:50, § 87(2)(b) and § 87(2)(b) begin walking away from the officers. At 3:53, PO Kirkland points to the three of them and says, "No, no, you're not leaving now, you're not leaving now, stand right here." At 4:09, § 87(2)(b) asked if they are being detained, and PO Kirkland replies, "Yes, you are being detained."

Over the next ten minutes, the individuals ask PO Kirkland repeatedly why they are being detained and PO Kirkland tells them each time that it is because they requested a supervisor. At 6:00, § 87(2)(b) asks, "We're detained for what?" and PO Kirkland says, "He wants to see a supervisor, imma get a supervisor" to which § 87(2)(b) replies, "We don't want to see the supervisor," and PO Kirkland responds at 6:06, "It's too late." At 7:29, PO Kirkland says, "You want to see a supervisor so you wait till the supervisor comes." § 87(2)(b) says at 7:33, "I changed my mind" and PO Kirkland says, "Too late, it's too late."

At 13:20, Lieutenant Ki arrives on scene and speaks to PO Kirkland. At 16:28, Lt. Kim says to the individuals, "You are free to go, but you cannot be topless. Okay?" § 87(2)(b) responds, "I understand, thank you." The four individuals then walk away as the video ends.

PO Kirkland (BR 04) testified that he detained § 87(2)(b) because they had demanded to speak with a supervisor. PO Kirkland testified that § 87(2)(b) had committed no crime and the only reason he detained them was because they had requested to speak with a supervisor. He added that even though § 87(2)(b) changed their mind about seeing a supervisor, he continued to detain them to prevent any false allegations being made against him.

Patrol Guide Procedure 212-11 (BR 07) states that persons may only be detained while conducting a criminal investigation when reasonable suspicion that the person has committed, is committing, or is about to commit a felony or Penal Law misdemeanor exists. The suspect may be detained only as long as necessary to confirm or dispel your suspicion that she/he was committing, committed, or was about to commit a felony or Penal Law misdemeanor. Authority to detain the suspect ends when the tasks tied to the reason for the stop are completed or reasonably should have been completed.

BWC is consistent with PO Kirkland's testimony in that he detained § 87(2)(b) after initially stopping them to address the violation solely because they requested to speak to a supervisor, § 87(2)(g).

It is therefore recommended that **Allegation B, C, D and E be substantiated.**

Allegation (F) Abuse of Authority: Police Officer Lamont Kirkland failed to provide § 87(2)(b) with a business card.

Allegation (G) Abuse of Authority: Police Officer Lamont Kirkland failed to provide § 87(2)(b) with a business card.

Allegation (H) Abuse of Authority: Police Officer Lamont Kirkland failed to provide § 87(2)(b) with a business card.

Allegation (I) Abuse of Authority: Police Officer Lamont Kirkland failed to provide § 87(2)(b) with a business card.

PO Kirkland (BR 04) testified that he did not provide anyone with a business card during this incident despite being required to. He provided no explanation.

PO Kirkland's BWC (BR 16) ends with § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) walking away from officers. PO Kirkland is not seen or heard offering a business card.

Administrative Guide 304-11 (BR 08) states that officers are required to provide a business card at the conclusion of law enforcement activities in which a summons is not issued nor is an arrest made, including Level 2 and Level 3 stops, which includes circumstances where a person would feel not free to end the encounter.

It is undisputed that PO Kirkland detained § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(g). It is therefore recommended that **Allegations F, G, H, and I be substantiated.**

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been party (BR 10).
- This is the first complaint to which § 87(2)(b) has been party (BR 11).
- This is the first complaint to which § 87(2)(b) has been party (BR 12).
- This is the first complaint to which § 87(2)(b) has been party (BR 13).
- PO Kirkland has been a member of service for eighteen years and has been listed as a subject in nine CCRB complaints and sixteen allegations, one of which was substantiated.
 - 201508539 involved an allegation of property damage, which was unsubstantiated, and an allegation of refusal to provide a shield number, which was substantiated. The Board recommended and the NYPD imposed Formalized Training.
 - § 87(2)(g)

- PO Gomez has been a member of service for two years and this is the first CCRB complaint in which he is listed as a subject.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On August 14, 2023, a FOIL request to the Office of the Comptroller for any Notice of Claim filed regarding this incident was returned with negative results (BR 14).

● [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

■ [REDACTED]

[REDACTED]

■ [REDACTED]

[REDACTED]

■ [REDACTED]

[REDACTED]

■ [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 16

Investigator:	Carter Garfield	SI Garfield	10/5/2023
	Signature	Print Title & Name	Date

Squad Leader: Patrick Yu IM Patrick Yu 10/05/2023
Signature Print Title & Name Date

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____